

23STCV19216 23STCV19216

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-14

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Case Number: 23STCV19216 Hearing Date: July 14, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

FELICIA GALE

;

Plaintiff,

vs.

CITY OF LOS ANGELES

, et al.;

Defendants.

Case

No.:

23STCV19216

Hearing

Date:

July
14, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

city of los angeles's motion for relief from late designation of expert
witness

MOVING PARTY: Defendant,
City of Los Angeles

RESPONDING

PARTY: Plaintiff,
Felicia Gale

(1)

Defendant

City of Los Angeles' Motion for Relief from Late Designation of Expert Witness is
DENIED pursuant to Code of Civil Procedure sections 2034.710 and 2034.720.

The Court considers the moving papers filed on
April 7, 2026, the opposition brief filed on July 6, 2026, and the reply brief
filed on July 10, 2026.

BACKGROUND

Factual Background

On August 11, 2023, plaintiff Felicia Gale ("Plaintiff") filed the Complaint
against defendants City of Los Angeles ("the City"), Fannie King, Fannie King
Trust, Luis Hernandez, Alejandro Lopez, and DOES 1 through 50. The Complaint includes the following two causes
of action: (1) General Negligence and (2) Premises Liability.

On November 22, 2023, the City filed the Cross-Complaint against cross-defendants Fannie King, Fannie King Trust, Luis Hernandez, Alejandro Lopez, and ROES 1 through 10. The Cross-Complaint includes the following causes of action: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On an unspecified date, Robin Jung, counsel for the City, reviewed Plaintiff's emergency room records and observed that Plaintiff's alcohol level was recorded on the night of the incident.

(Declaration of Robin Jung ("Jung Decl."), ¶ 1.) For reasons that remain unclear, Jung erroneously believed that the alcohol level was measured using Blood Alcohol Concentration ("BAC"), not realizing this assumption was incorrect until a later unspecified date. (Jung Decl., ¶¶ 2, 4.)

Upon identifying the incorrect assumption, Jung asserts that they "immediately began the process to retain a toxicology expert," as a toxicology expert would be necessary to interpret and convert the results to the BAC scale. (Jung Decl., ¶¶ 4-5.) Jung further states, "It is also often extremely difficult to find experts to retain, as the City does not pay for high expert rates, usually requires invoicing instead of fronting retention fees, and often takes months to pay expert invoices." (Jung Decl., ¶ 5.)

On February 25, 2026, Plaintiff served her expert designation on the City. (Jung Decl., ¶ 7.) Jung claims that they overlooked this email due to their pretrial preparations for another case, compounded by the absence of their administrative assistant from the office on that day. (Jung Decl., ¶ 7.)

The deadline for serving supplemental expert designations was set for March 17, 2026; however, the City did not serve its amended expert witness list until March 26, 2026, which included the toxicology expert. (Jung Decl., ¶¶ 6-8, Exh. A.) Jung indicates that the deadline of March 17, 2026, was not entered into their calendar and that they did not become aware of their oversight until the amended expert list was served. (Jung Decl., ¶ 8.) In this list, the City informed Plaintiff that it "will be filing a Motion for Relief from late Designation of Expert Witnesses, pursuant to Code Civ. Proc. § 2034.710, shortly." (Jung Decl., ¶ 6, Exh. A.)

On April 6, 2026, the City served supplemental expert designations. (Jung Decl., ¶ 10, Exh. B.)

On an unspecified date, Jung proposed a stipulation to continue the trial to facilitate the completion of expert depositions; nevertheless, Plaintiff's counsel declined to agree to the stipulation or to accept the late designation of experts. (Jung Decl., ¶ 11.)

Procedural Background

On April 6, 2026, the City filed the motion.

On April 7, 2026, the City filed the Ex Parte Application for an Order Continuing the Trial Date and Specially Setting Hearing on Motion for Relief from Late Designation of Expert Witness. The Court granted the ex parte application on April 8, 2026. (April 8, 2026, Minute Order, p. 1.) Consequently, the Court continued the FSC to September 17, 2027, the non-jury trial to September 29, 2027, and adjusted all discovery deadlines to follow these new trial dates. (April 8, 2026, Minute Order, p. 1.)

On July 6, 2026, Plaintiff filed an opposition brief. On July 10, 2026, the City filed a reply brief.

LEGAL STANDARD

Any party may demand a mutual and simultaneous exchange by all parties of a list containing the name and address of any person whose oral or deposition testimony in the form of an expert opinion any party expects to offer in evidence at the trial. (Code Civ. Proc., § 2034.210, subd. (a).)

"On motion of any party who has failed to submit expert witness information on the date specified in a demand for that exchange, the court may grant leave to submit that information on a later date." (Code Civ. Proc., § 2034.710, subd. (a).) The motion "shall be made a sufficient time in advance of the time limit for the completion of discovery ... to permit the deposition of any expert to whom the motion relates to be taken

within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a later time." (Code Civ. Proc., § 2034.710, subd. (b).) "The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2034.710, subd. (c).)

"The court shall grant leave to submit tardy expert witness information only if all of the following conditions are satisfied:

(a) The court has taken into account the extent to which the opposing party has relied on the absence of a list of expert witnesses.

(b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.

(c) The court has determined that the moving party did all of the following: ¶ (1) Failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect. ¶ (2) Sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect. ¶ (3) Promptly thereafter served a copy of the proposed expert witness information described in Section 2034.260 on all other parties who have appeared in the action.

(d) The order is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion." (Code Civ. Proc., § 2034.720.)

MEET AND CONFER REQUIREMENT

The City must meet and confer with Plaintiff before bringing this motion. (Code Civ. Proc., § 2034.710, subd. (c).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration "in support of a motion shall state facts showing a reasonable and good faith attempt at an

informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) ““The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.”” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On March 26, 2026, the City served its amended expert witness list. (Jung Decl., ¶¶ 6-8, Exh. A.) In this list, the City informed Plaintiff that it “will be filing a Motion for Relief from late Designation of Expert Witnesses, pursuant to Code Civ. Proc. § 2034.710, shortly.” (Jung Decl., ¶ 6, Exh. A.)

On an unspecified date, Jung proposed a stipulation to continue the trial to facilitate the completion of expert depositions; nevertheless, Plaintiff’s counsel declined to agree to the stipulation or to accept the late designation of experts. (Jung Decl., ¶ 11.)

Consequently, the Court finds that the City made sufficient attempts to meet and confer with Plaintiff prior to filing this motion.

DISCUSSION

Untimely Opposition Brief

The City requests that the Court not consider the untimely opposition brief filed by Plaintiff is GRANTED. (Reply, p. 1:24-27.)

“All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.” (Code Civ. Proc., § 1005, subd. (b).)

Given that the motion is scheduled to be heard on July 14, 2026, Plaintiff was required to file and serve their opposition brief by June 30, 2026. However, Plaintiff submitted their opposition brief on July 6, 2026, which is three court days past the deadline.

The Court typically exercises its discretion to consider an opposition brief that is filed a couple of days late, particularly when the moving party submits a reply brief. (See Cal. Rules of Court, rule 3.1300(d).) Here, however, Plaintiff submitted their opposition brief three court days after the established deadline, which forced the City to file a late reply brief only two court days before the hearing. As such, the Court will not exercise its discretion to consider the opposition brief, as doing so would be prejudicial.

Mistake, Inadvertence,
Surprise, or Excusable Neglect

The City requests leave to submit expert witness information concerning a toxicologist beyond the established deadline of March 17, 2026, for the exchange of such information. (Motion, p. 1:24-26.)

For the Court to grant this motion, it must determine “that the moving party did all of the following: ¶ (1) Failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect. ¶ (2) Sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect. ¶ (3) Promptly thereafter served a copy of the proposed expert witness information described in Section 2034.260 on all other parties who have appeared in the action.” (Code Civ. Proc., § 2034.720, subd. (c).)¿

Here, the City has not provided a legal analysis that articulates how its failure to include the toxicologist constitutes a mistake, inadvertence, surprise, or excusable neglect. Rather, the City claims that “[t]he late designation was simply a result of mistake, inadvertence, and excusable neglect[.]” effectively placing the burden on the Court to justify its position. (Motion, p. 6:23-24.)

Moreover, the Court notes the ambiguity regarding whether the City sought permission promptly after recognizing the alleged mistake, inadvertence,

surprise, or excusable neglect, or whether it served a copy of the proposed expert witness information in a timely manner.

Jung asserts that they “immediately began the process to retain a toxicology expert,” yet fails to specify the date when the alleged mistake, inadvertence, surprise, or excusable neglect was recognized or when the retention process commenced. (Jung Decl., ¶¶ 4-5.) In the absence of this information, the Court is unable to ascertain the promptness of the City’s actions.

Accordingly, the Court DENIES the City’s motion.

ORDERS

1) Defendant

City of Los Angeles’ Motion for Relief from Late Designation of Expert Witness is DENIED.

2) The

City is ordered to give notice of this Court’s ruling.

IT IS SO ORDERED.

DATED: July 14, 2026

Tamara
Hall

Judge
of the Superior Court